

Exhibit C

Warrantless Arrest, Missing Probable-Cause Record, and Contradictory Custody Testimony

I. Overview

The arrest record contains a serious procedural defect. The State has no arrest warrant, no arrest affidavit, no written probable cause statement, and no contemporaneous factual narrative detailing what Major Donnie Steve Freeman, Jr. presented to the magistrate to justify Defendant's arrest.

The only arrest-related probable-cause document reflected in the record is the magistrate's order. That order states that Defendant "has been arrested without a warrant" and that probable cause justified detention. It does not identify the facts supporting probable cause. It does not show what Freeman knew when Defendant's custody began. It does not show what Freeman told the magistrate. It does not distinguish between facts known before custody and information obtained after Defendant had already been detained, guarded, and denied the freedom to leave.

That missing record creates the central problem. Freeman later testified in a manner that suggested Defendant was not in custody until after Freeman obtained judicial authorization. The magistrate's own order contradicts that account. It identifies the arrest as warrantless rather than warrant-based.

The contradiction matters because custody timing governs the legality of the arrest, the probable cause analysis, the Miranda analysis, and the credibility of the State's lead investigator. The missing documentation matters because no reviewing authority can meaningfully test what facts supported the arrest at the moment custody began.

This exhibit establishes the following point: the State cannot justify a warrantless custodial seizure by a conclusory magistrate order lacking a factual basis and by later testimony that conflicts with the order itself.

II. Issue Presented

Whether Defendant's arrest, detention, interrogation, and later prosecution were tainted where:

1. Freeman detained Defendant in his office before completing the magistrate process;
2. Freeman had another officer guard Defendant;
3. Freeman admitted Defendant was not free to leave;
4. Freeman went to the magistrate without Defendant;
5. the magistrate's order states that Defendant had been "arrested without a warrant";
6. the record contains no arrest warrant, no arrest affidavit, no written probable-cause statement, and no factual arrest narrative; and
7. Freeman later testified in a manner that allowed the jury to believe lawful judicial authorization preceded custody.

III. Governing Law

North Carolina law distinguishes between an arrest made under a warrant and one made without a warrant.

An officer who arrests under a warrant acts on judicial authorization that already exists. An officer who arrests without a warrant acts first and must later justify that seizure through the procedures governing warrantless arrests.

N.C. Gen. Stat. § 15A-401 governs arrest authority. Subsection (a) addresses arrests pursuant to a warrant. Subsection (b) addresses warrantless arrests. For a felony outside the officer's presence, an officer may arrest without a warrant only when probable cause exists before the arrest.

N.C. Gen. Stat. § 15A-511 governs the initial appearance before a magistrate. It requires an officer who makes an arrest, with or without a warrant, to take the arrested person before a magistrate without unnecessary delay. When the arrest occurred without a warrant, the magistrate must determine whether probable cause exists. If the magistrate finds probable cause, the magistrate issues an order stating the crime charged and finding that the Defendant was arrested without a warrant and that probable cause supports detention.

The Fourth Amendment requires a neutral judicial determination of probable cause after a warrantless arrest. *Gerstein v. Pugh*, 420 U.S. 103 (1975). That determination may be informal and nonadversarial, but it must come from a

neutral judicial officer. An officer's own assessment does not satisfy the constitutional requirement for extended restraint of liberty.

Due process also prohibits the State from using false or materially misleading testimony or leaving such testimony uncorrected. *Napue v. Illinois*, 360 U.S. 264 (1959). That rule applies when testimony creates a false impression on a material issue. The timing and legality of an arrest are material issues.

IV. Material Record Facts

A. Freeman Detained Defendant Before Completing the Magistrate Process

Freeman held Defendant in his office. Another officer guarded Defendant. Freeman admitted Defendant was not free to leave. Freeman then left Defendant under officer control while Freeman went to the magistrate.

Those facts matter because custody turns on restraint, not on the officer's preferred label. An officer cannot avoid custody analysis by calling the situation a detention, a wait, or something short of custody. When a person remains inside a law-enforcement office, under an officer's control, guarded by another officer, and not free to leave, the facts support a finding of custody.

B. Freeman Went to the Magistrate Without Defendant

Freeman did not take Defendant to Magistrate Ann Johnson during the critical probable-cause presentation. Freeman went alone. He presented whatever facts he chose. Defendant remained detained elsewhere.

That procedure matters because § 15A-511 requires the officer to take the arrested person before a magistrate without unnecessary delay. The statutory process does not exist merely to let an officer obtain paperwork. It creates an initial-appearance safeguard tied to the arrested person.

C. The Magistrate's Order Identifies the Arrest as Warrantless

The magistrate's order states that Defendant had been "arrested without a warrant." That phrase controls the arrest-sequence analysis.

The order does not show that a warrant existed before custody. It shows the opposite. It identifies the arrest as warrantless.

If the arrest was warrantless, then probable cause had to exist before Freeman placed Defendant in custody. The State cannot treat the magistrate's later order as an arrest warrant authorizing custody in advance.

D. No Separate Probable-Cause Record Exists

The record contains no separate arrest warrant, no arrest affidavit, no written probable-cause statement, no officer-written factual summary, and no preserved contemporaneous narrative of what Freeman told the magistrate.

The magistrate's order contains only a legal conclusion. It states that probable cause existed. It does not identify the supporting facts. It does not say whether Freeman relied on witness statements, Defendant's statements, physical evidence, medical evidence, timeline evidence, or any other source. It does not say which facts Freeman knew before custody began. It does not say whether Freeman relied on information obtained after Defendant had already been detained.

That absence prevents meaningful review.

E. Freeman's Trial Testimony Supplied the Missing Narrative

Because no factual arrest record exists, Freeman's testimony became the State's substitute for the missing probable-cause narrative.

Freeman supplied the State's explanation for when custody began, why Miranda warnings were not given, what supposedly justified the arrest, and whether judicial authorization preceded custody. That made his testimony central to the legality of the seizure.

The problem is that Freeman's testimony conflicts with the official paperwork. The paperwork says Defendant was arrested without a warrant. Freeman's testimony suggested that custody began only after judicial authorization was obtained.

Those two accounts describe different legal events.

V. The Core Contradiction

The contradiction can be stated plainly.

If Defendant was already held in Freeman's office, guarded by another officer, and not free to leave before Freeman went to the magistrate, then custody began before the magistrate process ended.

If the magistrate's order states that Defendant was arrested without a warrant, then the arrest was not based on a preexisting warrant.

If no written probable-cause record exists, then no contemporaneous document shows what facts justified custody when it began.

If Freeman later testified that custody began only after judicial authorization existed, then his testimony gave the jury a custody sequence that the magistrate's order contradicts.

That contradiction is material. It does not concern terminology. It concerns when the State restrained Defendant's liberty and what facts justified that restraint at that time.

VI. The Missing Probable-Cause Record Prevents Meaningful Review

The State preserved only the magistrate's conclusion, not the factual basis for that conclusion.

That is not enough to test the legality of the arrest. A reviewing authority must know what facts supported probable cause when custody began. The magistrate's order does not answer that question.

The missing record prevents review in four ways.

A. It Prevents Review of Timing

Probable cause must exist at the time of arrest. It cannot be created afterward.

The relevant question is not whether Freeman eventually persuaded a magistrate to sign an order. The relevant question is whether Freeman had probable cause when Defendant's custody began.

If Defendant was already detained, guarded, and not free to leave before Freeman went to the magistrate, then the State must identify the facts that justified custody at that earlier moment. The record contains no written document that does so.

B. It Prevents Review of Accuracy

A written probable-cause narrative allows a court or reviewing authority to test whether the officer accurately stated the evidence. It allows comparison between the officer's claims, witness statements, omissions, contrary facts, unsupported assumptions, and later testimony.

No such arrest narrative exists here.

Without that record, the reviewing authority must rely on Freeman's later testimony. That creates a reliability problem because Freeman's testimony conflicts with the magistrate's own warrantless-arrest paperwork.

C. It Prevents Any Affidavit-Based Test of the Arrest

This is not an ordinary Frank's issue. There is no arrest affidavit to correct, redact, supplement, or test against the known record.

That is the defect.

The State did not preserve a factual arrest affidavit. It preserved only a conclusory order of the magistrate. Because no arrest affidavit exists, the defense cannot compare what Freeman swore to what witnesses actually said, what Freeman omitted, or whether a corrected factual showing would still support probable cause.

The absence of an arrest affidavit does not help the State. It makes the arrest harder to review and easier to reconstruct after the fact.

D. It Forces Reliance on After-the-Fact Reconstruction

When no arrest affidavit, written probable-cause statement, or preserved factual narrative exists, the State must rely on after-the-fact testimony to explain the arrest.

That is exactly what the Fourth Amendment guards against. The State cannot detain first, question second, obtain a conclusory order third, and then use later testimony to reconstruct what probable cause supposedly existed earlier.

Probable cause must rest on facts known when custody began. It cannot rest on later explanations created after the seizure.

VII. Freeman's Testimony Was Material

Freeman's testimony was material because it filled the gap left by the missing record.

He supplied the State's explanation for:

1. when Defendant became detained;
2. why Defendant supposedly was not in custody before the magistrate process;

3. why Miranda warnings were not given;
4. what facts supposedly supported probable cause; and
5. whether lawful judicial authorization preceded custody.

If Freeman misstated or obscured the custody sequence, the error affected the foundation of the arrest. It affected the Miranda issue. It affected the admissibility of statements. It affected the jury's understanding of whether the State followed lawful process before restraining Defendant's liberty.

A veteran investigator should know the difference between:

1. an arrest made under a warrant issued before custody;
2. a warrantless arrest followed by a magistrate's order; and
3. a custodial detention where the officer holds the suspect first and seeks judicial approval afterward.

Those are different constitutional and statutory events. Freeman's testimony blurred those distinctions in a way that benefited the State and minimized the significance of the warrantless-arrest order.

VIII. The Custody Timeline Undermines Freeman's Miranda Explanation

Freeman's Miranda explanation depended on one premise: Defendant was not in custody before Freeman obtained judicial authorization.

The record contradicts that premise.

Freeman held Defendant in his office. Another officer guarded him. Freeman admitted Defendant was not free to leave. Freeman then left Defendant under officer control while Freeman went to the magistrate.

Those facts establish custody for Miranda purposes regardless of Freeman's later label.

Freeman, therefore, did not merely fail to give Miranda warnings. He justified that failure through a custody timeline that the magistrate's warrantless-arrest order contradicts.

If Defendant was already in custody before Freeman went to the magistrate, then Freeman's questioning occurred during custodial interrogation. The absence of Miranda warnings cannot be excused by claiming custody began only after the magistrate process. The objective facts show restraint before that point.

IX. The State's Failure to Correct the Custody Narrative Raises a Due-Process Problem

The State possessed the magistrate's paperwork. That paperwork did not say Defendant was arrested pursuant to a warrant. It said Defendant was arrested without a warrant.

The State, therefore, knew, or had every reason to know, that the official arrest record contradicted any testimony suggesting that custody began only after a warrant or equivalent judicial authorization existed.

If Freeman's testimony left the jury with the impression that lawful judicial process preceded custody, that impression was materially misleading. The sequence bore directly on the legality of the seizure, the existence of probable cause, the Miranda issue, and Freeman's credibility as the lead investigator.

Under *Napue*, the State may not allow materially false or misleading testimony to stand uncorrected. That duty applies here because the contradiction concerned the arrest itself.

The magistrate's order establishes a warrantless arrest. Freeman's testimony suggested a warrant-first or authorization-first sequence. The State could not properly allow both versions to coexist before the jury without correction.

One version described custody after judicial authorization. The other described custody before the magistrate signed the order.

That difference matters.

X. Freeman's Control Over the Process Requires Formal Review

Freeman controlled the detention. He controlled the interrogation. He controlled the oral presentation to the magistrate. He controlled the witness summaries. He controlled the warrant materials. He then supplied the trial testimony explaining when custody supposedly began and why Miranda warnings were supposedly unnecessary.

Yet the record contains no arrest affidavit, no written probable-cause statement, and no contemporaneous factual narrative detailing the facts allegedly justifying Defendant's warrantless arrest.

That combination requires formal review.

The only person who can explain the missing factual basis is the same officer whose testimony conflicts with the magistrate's paperwork for the warrantless arrest. A reviewing authority should not treat that problem as clerical. It goes to the legality of the seizure, the reliability of the probable-cause showing, the Miranda issue, and the credibility of the lead investigator.

XI. Findings Supported by the Record

The record supports, or at a minimum requires investigation into, the following findings:

1. Freeman held Defendant in his office before completing the magistrate process.
2. Another officer guarded Defendant.
3. Freeman admitted Defendant was not free to leave.
4. Freeman went to the magistrate without Defendant.
5. The magistrate's order states that Defendant had been arrested without a warrant.
6. The record contains no separate arrest warrant, arrest affidavit, written probable-cause statement, or contemporaneous factual arrest narrative.
7. The magistrate's order contains a conclusory probable-cause finding but no factual basis showing what Freeman presented.
8. Freeman later testified in a manner that suggested custody began only after judicial authorization existed.
9. That testimony conflicts with the warrantless-arrest characterization in the magistrate's paperwork.
10. The contradiction bears directly on probable cause, Miranda custody, statutory initial-appearance compliance, impeachment, and due process.

11. The State possessed the magistrate paperwork and could correct testimony that gave the jury a materially misleading account of the arrest sequence.
12. The absence of contemporaneous probable-cause documentation prevents meaningful review of whether probable cause existed when custody began.

XII. Requested Review

The reviewing authority should require production and review of all materials bearing on the arrest sequence, including:

1. the magistrate's order signed by Magistrate Ann Johnson;
2. any commitment or release order signed by Magistrate Martin Cole;
3. any arrest warrant, if the State contends one existed;
4. any arrest affidavit, if the State contends one existed;
5. any written probable-cause summary, if the State contends one existed;
6. Freeman's reports and supplemental reports;
7. Freeman's trial testimony;
8. interview recordings and timestamps;
9. booking, fingerprinting, and processing records;
10. dispatch, CAD, and detention logs;
11. courthouse or magistrate-area security logs or recordings, if available;
12. communications between Freeman, the magistrate, prosecutors, and other officers about the arrest; and
13. any document showing when Defendant was first told he was under arrest, what charge he faced, or what cause supported the arrest.

If no arrest warrant, arrest affidavit, written probable-cause statement, or factual arrest narrative exists, the reviewing authority should make that absence an express finding.

XIII. Conclusion

The State has no reviewable contemporaneous probable-cause documentation for the arrest, other than the magistrate's conclusory order authorizing a warrantless arrest.

That order confirms the arrest was warrantless. It does not identify the facts supporting probable cause. It does not show when custody began. It does not show what Freeman knew at that time. It does not show what Freeman told the magistrate. It does not show whether Freeman relied on facts obtained before detention or information obtained after Defendant had already been held, guarded, and told he was not free to leave.

Freeman's later testimony cannot cure that defect. It makes the defect worse because his testimony suggested that custody began only after judicial authorization was obtained, whereas the magistrate's order states that Defendant had been arrested without a warrant.

The contradiction matters because custody timing governs the legality of the arrest, the probable cause analysis, the Miranda analysis, and the credibility of the State's lead investigator. The missing documentation matters because it prevents a meaningful review of the facts allegedly supporting the arrest.

This exhibit identifies a structural failure in the arrest record: a warrantless arrest supported only by a conclusory magistrate order, no preserved factual probable-cause narrative, and sworn testimony that gave the jury a materially misleading account of how and when custody began.